

LA.1 Owner-Builder Exemption Walkthrough

What Louisiana actually lets you do on your own house — under three different chapters of law, only one of which most guides have read.

Before you use this document

This is a process reference, not legal advice. Louisiana writes one mandatory construction code for the whole state and then hands enforcement to each parish and municipality, which is why the code your house must meet is the same in Cameron Parish as in Caddo while the office that inspects it, the forms it hands you and the fee it charges are not. Confirm every local item with the office that will actually handle your parcel before you rely on it.

THE SHORT VERSION

Louisiana is one of the few states that **names the owner-builder in its statute** instead of leaving you to argue you fall outside a definition. The exemption is real, it is written down, and — this is the part that matters most — it is written in *management* verbs. You may **hire and direct subcontractors** on your own house. You are not limited to work you perform with your own hands.

It comes with one condition and one piece of paper. The condition is a frequency cap: **one residence per year**, and the year runs from the date your certificate of occupancy issues. The paper is an **affidavit of exemption** on a form the state licensing board provides, which you hand to your local permit office *before* the permit issues.

What that exemption does **not** do is release you from anything else. The building code still binds your house, the permit is still required, and two trades are governed by a different chapter of law entirely — one the contractor exemption does not touch. This document walks all three.

Two things almost every Louisiana guide still prints, and both are wrong

1. The statute number. Nearly every article, forum post and older guide cites **La. R.S. 37:2170** as the owner-builder exemption. That section, and R.S. 37:2171 with it, was **repealed by Acts 2022, No. 195**. Quoting a repealed section to a permit clerk is the fastest way to lose an argument you should win. The exemption now lives at **R.S. 37:2157(A)(13)**.

2. The dollar threshold. The figure in wide circulation is **\$75,000**. The current statute says **fifty thousand dollars** — R.S. 37:2150.1(19)(a) and (4)(a)(ii). Louisiana rewrote this chapter three times in four years (Acts 2022, No. 195; Acts 2024, No. 178; Acts 2025, No. 422), which is why so much of what is published about it describes law that is no longer in force.

Neither correction changes what you may do. Both change whether you can prove it.

Sources: La. R.S. 37:2157(A)(13); repeal of R.S. 37:2170 and 37:2171 by Acts 2022, No. 195, §2; La. R.S. 37:2150.1(4)(a)(ii) and (19)(a). Read at legis.la.gov, September 2026.

THE EXEMPTION, WORD FOR WORD

This is the entire provision. It is worth carrying to the permit counter on paper, because the sentence that gets you the permit is the last one.

La. R.S. 37:2157(A)(13) — Exemptions

“A. The provisions of this Part shall not apply to any of the following: ... **(13) Owners of property who supervise, superintend, oversee, direct, or in any manner assume charge of the construction, alteration, repair, improvement, movement, demolition, putting up, tearing down, or maintenance of their personal residences, if the homeowner does not build more than one residence per year. The one-year period shall commence on the date of issuance of the certificate of occupancy. However, an owner of property may build more than one single-family dwelling in a one-year period if the construction of an additional residence occurs as a result of a change in the legal marital status of the owner or change in the employment status of the owner whereby the owner must relocate to another employment location, which is located in excess of fifty miles from his personal residence. An affidavit of exemption shall be provided to obtain the building permit on a form provided by the board.**”

La. R.S. 37:2157(A)(13), quoted in full. “The board” is the State Licensing Board for Contractors — R.S. 37:2150.1(1).

What R.S. 37:2157(A)(13) does and does not let you do

		Why
Act as your own general contractor and hire licensed subs	Yes	The verbs are “supervise, superintend, oversee, direct, or in any manner assume charge” — management, not manual labor. Where the Legislature wanted hands-on work it said so, in the same section: (A)(15)(a) exempts an owner who “physically performs” home improvement work. Those words are absent from (13).
Do the work yourself	Yes	Nothing in (13) requires you to hire anyone. Trades governed by other chapters are covered further down this document.
Build a house to sell or rent	No	The exemption is for “their personal residences.” That phrase is the qualifying condition — see the note on selling, below.
Build more than one home in a year	No , with two exceptions	A change in your legal marital status, or a change in employment that forces you to relocate more than fifty miles from your personal residence.

What R.S. 37:2157(A)(13) does and does not let you do

		Why
Skip the building permit	No	The affidavit exists <i>to obtain</i> the permit. It is a precondition, not a substitute.
Skip the code, or the inspections	No	R.S. 37:2157(B): the exemptions section “shall not be construed to waive local and state health and life safety code requirements.”

THE ONE-HOME-A-YEAR CLOCK

Read the clock carefully, because it does not start where people assume. The statute says the one-year period **“shall commence on the date of issuance of the certificate of occupancy.”** Not the permit date, not the day you broke ground, not the day you moved in. If you are contemplating a second build, that single sentence is the one that decides whether you are still exempt.

The frequency cap in R.S. 37:2157(A)(13)

What starts the year	The date the certificate of occupancy issues on the first residence.
What does not start it	Permit issuance, start of construction, or occupancy in fact. The statute names one event.
Exception 1	A change in the owner's legal marital status .
Exception 2	A change in the owner's employment status requiring relocation to a work location more than fifty miles from the personal residence.
What the exceptions permit	Building more than one single-family dwelling inside the one-year window. Keep the documentation that proves the triggering change.

THE AFFIDAVIT OF EXEMPTION

Two separate statutes require this document, and between them they answer every practical question about it. The first is the last sentence of the exemption itself. The second puts the duty on the permit office, which is why the clerk will ask for it whether or not you bring it up.

La. R.S. 37:2160(C) — the duty on the permit office

“The local building permit official shall require any applicant claiming an exemption for residential construction activities to execute an affidavit attesting to the claimed exemption. Such affidavit shall be executed on a form provided by the board and submitted to the local building permit official prior to the issuance of a permit.”

The affidavit, in practical terms

What it is actually called	Affidavit Claiming Exemption from Licensure — that is the title printed on the LSLBC form. The statute calls it an “affidavit of exemption,” so both names are in circulation for one document.
Where to get it	The forms page at lsbcb.gov . The version current when this kit was verified is stamped Revised 8/1/2025 ; check for a newer revision before you sign.
Do not confuse it with	The Church Owner/Builder Affidavit , which sits on the same forms page and implements a different exemption (R.S. 37:2157(A)(3)). Confusingly, the words “Owner/Builder” appear in the <i>church</i> form's title and not in the homeowner one.
Who receives the signed affidavit	Your local building permit official — the parish or municipal permit office. Not the LSLBC. This is the detail most often reported backwards.
When	Prior to the issuance of a permit. It is a condition of getting the permit, not a filing you catch up on.
Notarized?	Yes. The form closes with “Sworn to and subscribed before me” and carries signature blocks for the homeowner and the notary. Do not sign it before you are in front of one.
How it is structured	A header block and eleven separate statements, each requiring your initials. They are not boilerplate — read the four summarized below before you initial anything.
Is a parish's own form acceptable?	The LSLBC form states that it is “the only document authorized by the Louisiana State Licensing Board for Contractors pursuant to La. R.S. 37:2160(C) to claim exemption from licensure.” Bring the state form even if your office hands you something else.

Sources: La. R.S. 37:2157(A)(13), final sentence; La. R.S. 37:2160(C); the LSLBC Affidavit Claiming Exemption from Licensure (revision of 1 August 2025), read in full at lsbcb.gov, September 2026.

Four of the eleven statements you will be initialing

The affidavit is where Louisiana quietly loads several obligations onto you that appear nowhere in the exemption statute. These four change how you should run the job.

From the LSLBC affidavit's initialed statements

	What you are agreeing to
Primary residence after the CO	You attest you are claiming the exemption to act as general contractor and that you will maintain the house as your primary residence after the certificate of occupancy. That is the resale question answered on the form itself, even though the statute is silent.
Written contracts with every sub	You acknowledge R.S. 37:2159(A) and (B): written contracts with each licensed subcontractor, and no work begins before all parties have signed. Budget time for this; it is not advice, it is an attestation.

From the LSLBC affidavit's initialed statements

	What you are agreeing to
The exemption does not cover your subs	You attest that your exemption does not extend to subcontractors who require licensure. See the section below — this catches people.
Direct, onsite supervision — by you	You accept sole legal and financial responsibility, agree to give direct onsite supervision , and agree not to hire an unlicensed person as your contractor, construction manager or supervisor. An absentee owner-builder is not what this exemption contemplates.

Sign it carefully — the form says so itself

The affidavit's eleventh statement has you acknowledge **La. R.S. 14:133**: submitting false information to a public agency is a **felony**, punishable by up to five years in prison and a fine of up to \$5,000. It also records your right to consult an attorney before signing. Neither of those is on the form by accident.

WHY YOUR PERMIT CLERK CARES SO MUCH ABOUT THIS FORM

Owner-builders often read the permit counter's insistence on the affidavit as bureaucratic caution. It is not. The statute puts the prohibition on the *clerk*, not on you.

La. R.S. 37:2160(B) — the rule the permit office is following

“A local building department shall not issue a building permit to any person who does not hold an active license in the appropriate classification for the scope of work for which the permit is issued. Nothing in this Section shall prohibit a local building department from issuing a permit for work that does not require a license pursuant to this Chapter.”

The first sentence forbids the office from putting your name on a permit. The second sentence is the door: a permit may issue for work that does not require a license — and an owner exempt under (A)(13) is doing exactly that. **The affidavit is how you prove you are through that door.** It is not paperwork you can backfill; without it the clerk is barred from issuing.

There is a second reason the offices are careful. Under R.S. 37:2160(A) the board's staff may inspect each local permit official's list of issued permits **every month** to check that nobody is working as a contractor without a license, and permitting authorities must hand over unredacted permit documents on request. Your affidavit is what makes your name on that list defensible.

YOUR SUBCONTRACTORS DO NOT RIDE ON YOUR EXEMPTION

This is the single most expensive misreading available in Louisiana, and it comes from a paragraph that looks helpful until you read who it applies to.

La. R.S. 37:2157(A)(17) — read who it covers

“(17) Any person performing work as a subcontractor **for a residential construction license holder**, except for electrical, mechanical, plumbing, mold remediation, asbestos, or hazardous materials scopes of work.”

It exempts subs only when they are working *for a license holder*. An exempt owner-builder is not a license holder — you are exempt *from* licensure, which is the opposite thing. And electrical, mechanical and plumbing are carved out of the paragraph in any event. The board's own affidavit says the same in plainer words: your exemption does not apply to any subcontractor who is subject to licensure.

Plan on every sub meeting its own threshold and holding its own license. Verify each one in the board's searchable database before the work starts, and keep a printout with the signed contract.

The reading above follows the plain text of R.S. 37:2157(A)(17) and is corroborated by the board's own affidavit. No Louisiana case or board rule construing the paragraph against an exempt owner was found, so treat it as the safe reading rather than a settled holding — which is how you should be treating it anyway.

SELLING LATER: WHAT THE STATUTE DOES AND DOES NOT SAY

This is worth getting exactly right, because Louisiana law contains both answers and they sit in the same section.

R.S. 37:2157(A)(13) contains no holding period and no anti-resale clause. It does not say you may not sell within any number of years. Its qualifying words are “their personal residences” and its only limit is the one-per-year cap. That is an unusual and genuinely favorable position compared with most states.

But the phrase that people remember — “will not be for sale or rent” — *does* exist in Louisiana law. It is in a different paragraph, **R.S. 37:2157(A)(2)**, the general owner exemption, which also requires that access to the property be controlled “so that only employees and nonpublic invitees are allowed access.” That condition is unworkable on an ordinary house lot, which is exactly why (A)(13) exists separately. Do not let the two be conflated — by a guide, or by a counter clerk reading the wrong paragraph.

The honest practical position: build it as your residence and be able to show that is what you did. A house sold immediately on completion invites the argument that you were building “for sale ... by another,” which is the opening words of the *residential contractor* definition at R.S. 37:2150.1(19)(a). Keep your homestead exemption filing, your utility accounts and your change of address.

THE \$50,000 THRESHOLD, AND WHAT COUNTS TOWARD IT

You do not need this number if the exemption applies to you — the exemption is not threshold-dependent. You need it for two other reasons: to know when a person you are *hiring* must hold a license, and because Louisiana defines project value in a way that surprises owner-builders.

La. R.S. 37:2150.1(3) — how project value is measured

“‘Contract’ means an agreement to perform a scope of work that is regulated by this Chapter. **The project value includes the entire cost of the labor, materials, rentals, and all direct and indirect project expenses. The cost of materials, rentals, and direct and indirect expenses shall be included regardless of who pays the costs or if they are donated.**”

Read the last sentence twice. **Owner-supplied materials count. Donated materials count.** You cannot bring a job under a threshold by buying the materials yourself and hiring out only the labor — the statute closes that door expressly. What the statute does *not* do is assign a dollar value to your own unpaid hours, and this kit prints no figure for that because none exists in the law.

LSLBC project-value thresholds that matter on a house

Scope	Threshold	Citation
New residential structure	\$50,000	R.S. 37:2150.1(4)(a)(ii), (19)(a)
Improvements or repairs to an existing residence	\$7,500	R.S. 37:2150.1(4)(a)(iii)
Home improvement	\$7,500	R.S. 37:2150.1(10), (11), (19)(b)(i)
Electrical contractor	\$10,000	R.S. 37:2150.1(6)
Mechanical contractor (HVAC)	\$10,000	R.S. 37:2150.1(13)
Plumbing contractor	\$10,000	R.S. 37:2150.1(16)

*The **\$7,500** home-improvement tier is a renovation rule, not a new-construction rule: “home improvement” is defined at R.S. 37:2150.1(10) as work on a preexisting residential structure, and R.S. 37:2150.1(11) bars a home improvement contractor from footings, foundations, outside walls, skeleton, bearing columns, load-bearing interior walls, floor slabs and roofing. It is the number that matters after your house exists.*

THE THREE CHAPTERS — TRADE BY TRADE

Here is the structural point no Louisiana guide makes, and it is the reason so much published advice about doing your own trade work in this state is muddled. Your position is set by **three different bodies of law**, and the contractor exemption you just read reaches only the first of them.

Three separate chapters govern one house

	Where it lives	What it does to you
1. Contractor licensing	R.S. 37:2150 et seq. State Licensing Board for Contractors	General building, electrical, mechanical and plumbing <i>contractor</i> licenses. R.S. 37:2157(A)(13) exempts you from this Part on your personal residence.
2. Plumbing and gas fitting	R.S. 37:1361 et seq. State Plumbing Board of Louisiana	Licenses the <i>individual</i> — residential plumber limited, journeyman, master, gas fitter. R.S. 37:2157 does not reach this chapter at all. Your allowance here comes from a different mechanism entirely — see below.
3. Individual sewage systems	LAC 51:XIII State health officer (LDH)	Installer licensing for septic systems, with an express homeowner carve-out that has one important limit.

Electrical and HVAC

Louisiana licenses electrical and mechanical **contractors** through the LSLBC, both at a **\$10,000** project value (R.S. 37:2150.1(6) and (13)). Both are inside the same Part that R.S. 37:2157(A)(13) switches off for an owner building their personal residence.

Note what the definition actually captures: an electrical contractor is a person who “undertakes to, attempts to, or submits a price or bid or offers to” do the work. It is a description of someone *selling* the work. A homeowner wiring their own house is not bidding it to anyone.

Now the fact that makes Louisiana different from almost every state around it: **there is no Louisiana journeyman or master electrician license**. There is no state board of electrical examiners. The state licenses the electrical *contractor* — the business selling the work — and stops there. Credentialing the individual electrician is left to municipalities, and it is optional even for them.

La. R.S. 33:4782 — where individual electrician licensing actually lives

“All municipalities, except New Orleans, may enact ordinances for the purpose of regulating persons pursuing or engaged in the business of installing wires or apparatus to convey electric current for light, heat, or power. ... The municipalities may in their discretion vest the board with full power, control, and regulation of the business. The power or final inspection of any of the work shall be vested solely in the city electrician.”

Note the verbs — “may enact,” “in their discretion.” This is a grant of optional authority to towns, not a statewide scheme, and New Orleans is expressly carved out of it and runs its own. So the honest answer to “do I need an electrician's license in Louisiana?” is: **the state does not issue one, and whether your town does is a question only your town can answer.**

So ask your permit office two questions, in these words, and write both answers on the line in LA.4: **does this jurisdiction license or register individual electricians**, and **may a homeowner pull the electrical permit on their own residence here?** Louisiana's uniform code law preempts local *construction codes*; it does not abolish local licensing ordinances, so this genuinely varies.

Plumbing — a different chapter, and a different mechanism

You will read that Louisiana “allows a homeowner to do their own plumbing.” That is broadly true and almost always explained wrongly. There is **no homeowner exemption** in the plumbing licensing sections: R.S. 37:1367(A) and (B) say flatly that no natural person shall do the work of a residential plumber limited, journeyman or master plumber without the board's license, and they name no owner.

The allowance is in the **definitions** instead, and it is stronger for being there. Work on your own home is not exempted from “plumbing” — it is excluded from the meaning of the word, so the license requirement never attaches in the first place.

La. R.S. 37:1377(D) — what “plumbing” does not include

“For purposes of this Chapter the definition of plumbing given above will not include: ... **(8) Work done by an individual on his own personal residence.**”

Two neighbors in the same list are worth knowing. **(2) Drilling of water wells** is also outside “plumbing” — a well driller is regulated elsewhere, not by the plumbing board. And **(9)**, the owner exclusion for *maintenance* work on property generally, says such work “shall specifically not include construction or installation.” Paragraph (8) carries no such limit — which is the difference between your own residence and a rental you own.

Gas fitting has its own, separate homeowner allowance, and this one is written as a true exemption: R.S. 37:1367(J)(2) — “The provisions of this Subsection shall not apply to work performed by persons on their own residences.” It attaches only to the gas fitter subsection.

The reach of the plumbing chapter is geographic — check whether it covers your site

R.S. 37:1375 limits where the whole plumbing chapter applies: to “all cities, towns, villages, communities and public sewerage and/or water districts in the State of Louisiana,” and to “all areas within **one mile** of the boundary of any city or sewer or water district ... and all areas within one mile of the community, sewerage or water facilities of the areas referred to above.” The section dates from 1964 and 1968 and the word “communities” is not defined in it. Do not conclude on your own that your parcel is outside the chapter's reach — ask the State Plumbing Board, and get the answer in writing before you rely on it.

Septic — you may install your own, with one exception that catches many Louisiana lots

The rule is unusually clear, and the exception inside it is the part worth planning around.

LAC 51:XIII.705.A — installer licensing

“A person who wishes to engage in the business of installing or providing maintenance of individual sewerage systems shall obtain ... a license for such activity prior to making any such installations or providing maintenance. **Such a license shall not be required, however, for an individual wishing to install an individual sewerage system, other than an individual mechanical plant, for his own private, personal use. Individual mechanical plants shall be installed and maintenance provided by licensed individual sewerage system installers and/or maintenance providers only.**”

So: a conventional septic tank and absorption field, an oxidation pond or a sand filter you may install yourself. An **individual mechanical plant** — the aerobic treatment unit Louisiana uses heavily wherever soils and water tables defeat a conventional field — must be installed and maintained by a licensed installer. On a great many Louisiana lots that is not a free choice, and the smaller lot sizes the Sanitary Code allows are themselves conditioned on using a mechanical plant. LA.2 covers the lot-size rule.

The license exemption is **not** a permit exemption. LAC 51:XIII.705.B makes the installer and the property owner both responsible for the permit and plan-approval sections, and the permit is issued by the state health officer in two stages. Expect an on-site inspection: the rule's final-approval path runs through either an inspection by the state health officer's representative *or* a “Certification by Installer” form signed by a licensed installer — and if you installed it yourself, you are not one.

IF YOU GET IT WRONG

Contracting without a license is a criminal offense in Louisiana, and the fine is a daily one. This is not printed to alarm you — the exemption is straightforward to qualify for — but because the daily multiplier is the part people do not expect.

La. R.S. 37:2163(C) — penalties

“(1) Anyone found to be in violation of this Section shall be guilty of a misdemeanor and, upon conviction, shall be fined a sum not to exceed five hundred dollars per day of violation, or three months in prison, or both. (2) Notwithstanding any action taken by the board, any person who does not possess a license from the board and violates any of the provisions of this Section, and causes harm or damage to another in excess of three hundred dollars, upon conviction, shall be fined not less than five hundred dollars nor more than five thousand dollars, or imprisoned, with or without hard labor, for not less than six months nor more than five years, or both.”

La. R.S. 37:2163(C). Prosecution is by the district attorney where the violation occurs — R.S. 37:2163(D).

DO YOU QUALIFY? WORK THIS BEFORE YOU FILE

- ☐ I own the property, and the structure will be **my personal residence** — not a house built to sell or to rent.
- ☐ I have not obtained a certificate of occupancy on another residence I built within the last year — or one of the two statutory exceptions applies and I can document it.
- ☐ I have the LSLBC **Affidavit Claiming Exemption from Licensure** — not the church form — and I have checked lsbc.gov for a revision newer than the one I am holding.
- ☐ I have read all eleven initialed statements, and I have a notary lined up. I am not signing it in advance.
- ☐ I have a **written contract** ready for every licensed subcontractor, and I know no work may start until all parties sign (R.S. 37:2159).
- ☐ I know my exemption does **not** cover my subcontractors, and I have verified each one in the board's license database.
- ☐ I know whether my site is in the **unincorporated parish** or inside a municipality, because that decides who receives the affidavit.
- ☐ Any electrical or mechanical work I hire out over **\$10,000** will go to an LSLBC-licensed contractor, and I have verified the license.
- ☐ Any plumbing I do not perform myself will be done by a State Plumbing Board licensee.
- ☐ I have asked my permit office, in plain words, whether a homeowner may pull the electrical permit here — and written the answer down.
- ☐ If I am on septic: I know whether my site needs a mechanical plant, because that decides whether I may install it myself.

☐ I understand the exemption releases me from the contractor license only — not from the permit, the code, or the inspections.

Sources — every Louisiana claim in this document (verified September 2026)

What this document states	Authority
The owner-builder exemption, and the affidavit requirement	La. R.S. 37:2157(A)(13)
The permit office must require the affidavit before issuing	La. R.S. 37:2160(C)
A permit office may not issue to an unlicensed person, except for work requiring no license	La. R.S. 37:2160(B)
The board may inspect local permit lists monthly	La. R.S. 37:2160(A)
Written contracts with subcontractors before work begins	La. R.S. 37:2159(A), (B)
The subcontractor exemption reaches only subs of a license holder	La. R.S. 37:2157(A)(17)
Form title, revision date, notarization, and the eleven statements	LSLBC, Affidavit Claiming Exemption from Licensure, rev. 1 Aug 2025
False information to a public agency is a felony	La. R.S. 14:133, as recited on the affidavit
No statewide electrician license; municipal option, New Orleans excepted	La. R.S. 33:4782
The exemption waives no health or life safety code requirement	La. R.S. 37:2157(B)
The “not for sale or rent” condition is in the general owner exemption, not the homeowner one	La. R.S. 37:2157(A)(2)
“Physically performs” appears in the home improvement exemption, not in (A)(13)	La. R.S. 37:2157(A)(15)(a)
R.S. 37:2170 and 37:2171 were repealed	Acts 2022, No. 195, §2
Residential contractor definition and the \$50,000 threshold	La. R.S. 37:2150.1(19)(a), (4)(a)(ii)
Project value includes owner-supplied and donated materials	La. R.S. 37:2150.1(3)
Electrical, mechanical and plumbing contractor thresholds	La. R.S. 37:2150.1(6), (13), (16)
“The board” means the State Licensing Board for Contractors	La. R.S. 37:2150.1(1)
Penalty for unlicensed contracting, per day of violation	La. R.S. 37:2163(C), (D)
Plumbing licenses are required of the individual, with no owner carve-out in the licensing section	La. R.S. 37:1367(A), (B)
Work on your own personal residence is outside the definition of “plumbing”	La. R.S. 37:1377(D)(8)

Sources — every Louisiana claim in this document (verified September 2026)

What this document states	Authority
Gas fitting on your own residence is expressly exempt	La. R.S. 37:1367(J)(2)
Geographic reach of the plumbing chapter	La. R.S. 37:1375
Homeowner may install their own sewerage system, except a mechanical plant	LAC 51:XIII.705.A
Owner remains responsible for the sewage permit and approved plans	LAC 51:XIII.705.B

Everything cited here is free to read. A **R.S.** citation is a Louisiana Revised Statute — search the number at **legis.la.gov** under Louisiana Laws. A **LAC** citation is the Louisiana Administrative Code, published as free PDFs by the Office of the State Register at **doa.la.gov**. Rules newer than the last codified printing appear only in the Louisiana Register at the same site, so check there before relying on a date. Read September 2026.